

# AXCELUS FINANCIAL LIFE INSURANCE COMPANY

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## RESTRICTED PERSON SUPPORTING QUESTIONNAIRE DELIVERED BY AN ENTITY

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The undersigned, \_\_\_\_\_, on behalf of \_\_\_\_\_ (the "Supporting Entity"), is furnishing the information in this restricted person questionnaire ("Questionnaire") to Axcelus Financial Life Insurance Company ("Axcelus Financial") so that Axcelus Financial can determine whether \_\_\_\_\_, the proposed or current owner of a Axcelus Financial Flexible Premium Deferred Variable Annuity Policy or Flexible Premium Variable Life Insurance Policy (a "Policy"), is a "Restricted Person" (as such term is defined below).

The undersigned understands that Axcelus Financial will rely upon this information for purposes of such determination. **All information contained in this Questionnaire will be treated confidentially.** The Supporting Entity agrees, however, that Axcelus Financial may present this Questionnaire to broker-dealers or selling agents acting on behalf of Axcelus Financial and to such other parties, and their respective counsel, as Axcelus Financial deems appropriate.

The undersigned understands that this Questionnaire is merely a request for information. The undersigned understands that this Questionnaire is not an application for, or an offer to sell or a sale of, a Policy and that no sale will occur prior to the issuance of a Policy.

### **INSTRUCTIONS**

1. Please read the entire form.
2. After reading the form, please select the response that applies to the Supporting Entity under the heading "Restricted Person Status" below.
3. Please sign the form and return this Questionnaire to Axcelus Financial.

### **DEFINITIONS**

**"Collective Investment Account"** means any hedge fund, investment partnership, investment corporation, or any other collective investment vehicle that is engaged primarily in the purchase and/or sale of securities. A "Collective Investment Account" does not include a "Family Investment Vehicle" or an "Investment Club."

**"Family Investment Vehicle"** means a legal entity that is beneficially owned solely by immediate family members.

**"Investment Club"** means a group of friends, neighbors, business associates, or others that pool their money to invest in stock or other securities and are collectively responsible for making investment decisions.

**"Limited Business Broker-Dealer"** means a broker-dealer engaged solely in the purchase or sale of investment company securities, variable contracts securities or direct participation program securities.

**"New Issues"** means any initial public offering of an equity security as defined in Section 3(a)(11) of the Securities Exchange Act of 1934, as amended (the "Act"), made pursuant to a registration statement or offering circular. New Issues shall not include:

- (a) offerings made pursuant to an exemption under Section 4(1), 4(2) or 4(6) of the Securities Act of 1933, or SEC Rule 504 if the securities are "restricted securities" under SEC Rule 144(a)(3), or Rule 144A or Rule 505 or Rule 506 adopted thereunder;
- (b) offerings of exempted securities as defined in Section 3(a)(12) of the Act, and rules promulgated thereunder;
- (c) offerings of securities of a commodity pool operated by a commodity pool operator as defined under Section 1a(5) of the Commodity Exchange Act;
- (d) rights offerings, exchange offers, or offerings made pursuant to a merger or acquisition;
- (e) offerings of investment grade asset-backed securities;
- (f) offerings of convertible securities;
- (g) offerings of preferred securities;
- (h) offerings of an investment company registered under the Investment Company Act of 1940; and
- (i) offerings of securities (in ordinary share form or ADRs registered on Form F-6) that have a pre-existing market outside of the United States.

**"Restricted Person"** means a person or entity which is any one of the following:

- (a) A member of the Financial Industry Regulatory Authority, Inc. ("FINRA") or other broker-dealers.
- (b) Broker-Dealer Personnel, which includes:
  - (i) any officer, director, general partner, associated person, or employee of a FINRA member or any other broker-dealer (other than a Limited Business Broker-Dealer);
  - (ii) any agent of a FINRA member or any other broker-dealer (other than a Limited Business Broker-Dealer) that is engaged in the investment banking or securities business; or
  - (iii) an immediate family member of a person specified in subparagraph (B)(i) or (ii) if the person specified in subparagraph (B)(i) or (ii):
    - (A) materially supports, or receives material support from, the immediate family member;
    - (B) is employed by or associated with the FINRA member, or an affiliate of the FINRA member, selling New Issues to the immediate family member; or
    - (C) has an ability to control the allocation of a New Issue.
- (c) With respect to a New Issue, a person who is a finder or who acts in a fiduciary capacity to the managing underwriters (including, among others, certain attorneys, accountants and financial consultants) or an immediate family member of such person if such person materially supports, or receives material support from, the immediate family member.
- (d) Any person who has authority to buy or sell securities for a bank, savings and loan institution, insurance company, investment company, investment advisory firm, or any Collective Investment Account, domestic or foreign, or an immediate family member of such person if such person materially supports, or receives material support from, the immediate family member.

- (e) Any of the following:
- (i) Any person listed, or required to be listed, in Schedule A of a Form BD (other than with respect to a Limited Business Broker-Dealer), except persons identified by an ownership code of less than 10%.
  - (ii) Any person listed, or required to be listed, in Schedule B of a Form BD (other than with respect to a Limited Business Broker-Dealer), except persons whose listing on Schedule B relates to an ownership interest in a person listed on Schedule A identified by an ownership code of less than 10%.
  - (iii) Any person listed, or required to be listed, in Schedule C of a Form BD that meets the criteria of subparagraphs (E)(i) and (E)(ii) above.
  - (iv) Any person that directly or indirectly owns 10% or more of a public reporting company listed, or required to be listed, in Schedule A of a Form BD (other than a reporting company that is listed on a national securities exchange or is traded on the Nasdaq National Market, or other than with respect to a limited business broker-dealer).
  - (v) Any person that directly or indirectly owns 25% or more of a public reporting company listed, or required to be listed, in Schedule B of a Form BD (other than a reporting company that is listed on a national securities exchange or is traded on the Nasdaq National Market, or other than with respect to a Limited Business Broker-Dealer).
  - (vi) An immediate family member of a person specified in subparagraphs (e)(i)-(v) unless the person owning the broker-dealer:
    - (A) does not materially support, or receive material support from, the immediate family member;
    - (B) is not an owner of the member, or an affiliate of the member, selling the New Issue to the immediate family member; and
    - (C) has no ability to control the allocation of the New Issue.

#### **RESTRICTED PERSON STATUS**

1. The undersigned represents and warrants to Axcelus Financial that (select one):
- \_\_\_\_\_ The Supporting Entity, and each person with a beneficial interest in the Supporting Entity, are not Restricted Persons; or
- \_\_\_\_\_ The Supporting Entity, or one or more persons with a beneficial interest in the Supporting Entity, are Restricted Persons.
- If the Supporting Entity or one or more persons with a beneficial interest in the Supporting Entity are Restricted Persons, please state the percentage of the beneficial interest held in the aggregate in the Supporting Entity by Restricted Persons: \_\_\_\_\_%.**
2. The Supporting Entity represents and warrants to Axcelus Financial that the information contained herein is complete and accurate as of the date shown below and may be relied upon by Axcelus Financial as of the date of any subsequent premium payment with the same force and effect as if made on and as of such date.

## **AGREEMENTS**

1. The Supporting Entity agrees that, in the event that at any time while a Policy is in force the representations and warranties made in this questionnaire are no longer accurate, the Supporting Entity will immediately provide written notification to Axcelus Financial of such change in status or belief.
2. The Supporting Entity agrees that if it has represented to Axcelus Financial that it is a Restricted Person, the Policy may be prevented from receiving an allocation of any appreciation or depreciation resulting from the direct or indirect investments in New Issues.
3. The Supporting Entity agrees to cooperate with Axcelus Financial and, from time to time, as requested by Axcelus Financial, the undersigned will provide Axcelus Financial with any information and respond to all inquiries from Axcelus Financial that are reasonably necessary to satisfy Axcelus Financial that the representations made in this questionnaire are accurate during the duration of a Policy.
4. The Supporting Entity agrees that this Questionnaire and the representations and warranties contained herein shall be binding upon the Supporting Entity's successors and permitted assigns.

**IN WITNESS WHEREOF, the Supporting Entity agrees to the foregoing statements and certifies the information set forth above is true and correct to the best of its information and belief as of the date set forth below.**

By: \_\_\_\_\_

Name \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_